



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF PILOT SCHOOLS FOR EXPELLED STUDENTS

1 CCR 301-40

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

2238-R-1.00 Statement of Basis and Purpose for Adoption of Rules.

The statutory basis for these Rules is found in 22-2-107(1)(c), State Board-Powers, 22-38-101, et. seq., C.R.S., the Pilot Schools for Students Expelled from Sixth through Ninth Grades, and 22-2-109(1), State Board-Additional Duties. The Act requires the State Board to promulgate Regulations that establish the criteria for applications submitted under this Act. The Act requires that specific criteria be included in these applications. The Rules identify these required components.

2238-R-2.00 Applications

All applications under this Article shall be submitted to the State Board and shall include:

- 2.01 A description of the applicant, its experience in providing educational, counseling, social, and other necessary services to expelled and other students, and, in the case of nonprofit organizations, its balance sheets and operating statements for the previous five years;
- 2.02 Information regarding the educational background, experience, and qualifications of personnel who will serve on the Board of Directors and operate the school;
- 2.03 The mission statement of the proposed pilot school;
- 2.04 The goals, objectives, and performance standards to be achieved by the pilot school;
- 2.05 A description of the standards upon which the pilot school will select and admit expelled and at-risk students and determine when an expelled student will be admitted as a residential student;
- 2.06 A description of the pilot school's educational program, student performance standards, curriculum, and student conduct code;
- 2.07 A description of the pilot school's plan for evaluating student performance, the types of assessments that will be used to measure student progress toward achievement of the school's student performance standards, the timeline for achievement of such standards, and the procedures for taking corrective action in the event that student performance at the pilot school falls below such standards;
- 2.08 Evidence that the proposed pilot school is economically sound, a proposed budget for the term of the contract, and a description of the manner in which an annual audit of the financial and administrative operations of the pilot school is to be conducted;
- 2.09 A description of the governance and operation of the pilot school, including the nature and extent of parental, professional educator, social services, and community involvement;

- 2.10 An explanation of the relationship that will exist between the proposed pilot school and its employees;
- 2.11 A description of the insurance that the pilot school will obtain;
- 2.12 A description of how the pilot school plans to meet the residential needs of its students and, if the pilot school plans to provide transportation for students, a plan for addressing their transportation needs;
- 2.13 A description of how the school will assist students in adapting to a public school or other appropriate learning or work environment upon the student's departure from the pilot school;
- 2.14 A description of how the residential pilot schools will transition the student back into the home environment if the student will be returning home;
- 2.15 A description of how the pilot school will involve parents in order to enhance students' performance in the pilot school, including the use of any mutual responsibility contracts authorized pursuant to Section 22-38-104(6);
- 2.16 A description of the pilot school's plan to sponsor periodic meetings, conferences, or training seminars to provide information concerning expelled or at-risk students to personnel in the school district or school districts that represent the geographic area in which the pilot school is located;
- 2.17 Identification of the entity that will evaluate the pilot school as required pursuant to Section 22-38-114;
- 2.18 A description of how the pilot school plans to foster an awareness of cultural needs; and
- 2.19 Any other information deemed necessary by the State Board.

Editor's Notes

History